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Provision of March 7, 2024
Register of provisions
n. 139 of February 7, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018,
containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU)
2016/679";

HAVING REGARD TO the minutes of the Administrative Team of the P.A.S.I. Division of the Matera
Police Headquarters transmitted by note dated November 11, 2022, which reports a control carried out
on October 29, 2022, at the public establishment under the sign "Rocky Bar," located in
Montescaglioso (MT), Viale Aldo Moro 161, owned by Ms. Giuliana Vinzi, which verified the presence
of a video surveillance system, consisting of 2 functioning cameras, placed inside the premises,
lacking appropriate informational signs and the authorization of the Labor Inspectorate;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The report received.

By note dated November 11, 2022, the Administrative Team of the P.A.S.I. Division of the Matera
Police Headquarters transmitted to this Authority the minutes of the control carried out on October 29,
2022, at the public establishment under the sign "Rocky Bar," located in Montescaglioso (MT), Viale
Aldo Moro 161, owned by Ms. Giuliana Vinzi, which verified the presence of a video surveillance
system consisting of 2 cameras, placed inside the premises, and a monitor positioned in the adjacent
room/storage for viewing the recordings.

The minutes reported the absence of informational signs regarding the presence of the cameras, both
inside and outside the premises, and the lack of authorization for the installation of the system from the
Territorial Labor Directorate or a collective agreement with the workers employed in the company, as
required by Article 4 of Law No. 300 of 1970, which contains the Workers' Statute.

2. The initiation of the procedure.

Having examined the documents, by note dated March 28, 2023 (prot. No. 52566), the Office notified
the party of the initiation of the procedure pursuant to Article 166, paragraph 5, of the Code for
violations of Article 5, paragraph 1, letter a) and 13 of the Regulation.

By note dated April 14, 2023, Ms. Giuliana Vinzi sent defensive writings stating that she had
subsequently affixed appropriate informational signs regarding the presence of the cameras inside and
outside the commercial establishment and had obtained, on November 28, 2022, the authorization for
the installation of the cameras, at the premises of the commercial establishment, from the Territorial
Labor Inspectorate of Potenza-Matera.

3. The legal framework of the processing carried out

The use of video surveillance systems can result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a monitored area.”

To this end, the data controller must affix appropriate informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense, also the FAQs on video surveillance published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that “Regarding video surveillance, the most important information must be indicated [by the controller] on the warning sign itself (first level), while further mandatory details can be provided by other means (second level). The guidelines also provide that “Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legible manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information should be adapted to the various locations.” The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

The processing of personal data carried out in the context of the employment relationship, if necessary for the purpose of managing the relationship itself (see Articles.

6, par. 1, lett. c); 9, par. 2, lett. b) of the Regulation, must be carried out in compliance with the general principles indicated by art. 5 of the Regulation, and in particular with the principle of lawfulness, according to which processing is lawful if it is in accordance with the applicable sector regulations (art. 5, par. 1, lett. a) of the Regulation). Consistent with this framework, art. 88 of the Regulation has preserved national provisions of greater protection (“more specific rules”) aimed at ensuring the protection of the rights and freedoms concerning the processing of personal data of workers. The national legislator has approved, as a more specific provision, art. 114 of the Code, which among the conditions for the lawfulness of processing has established compliance with the provisions of art. 4, law of May 20, 1970, n. 300. The violation of art. 88 of the Regulation is subject, if the requirements are met, to the application of an administrative pecuniary sanction pursuant to art. 83, par. 5, lett. d) of the Regulation.

Based on the aforementioned art. 4 of Law n. 300 of 1970, surveillance systems, if they also allow for “remote control” of employees’ activities, “may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets,” and their installation must, in any case, be carried out following the stipulation of an agreement with the unitary trade union representation or with the company trade union representatives, or, if it has not been possible to reach such an agreement or in the absence of representatives, only if preceded by the issuance of a specific authorization from the Labor Inspectorate. The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation of surveillance systems. The violation of this provision is also subject to criminal sanctions (see art. 171 of the Code). The processing of personal data carried out by the Company through the surveillance system is therefore unlawful, as stated above, in relation to arts. 5, par. 1, lett. a) and 13 of the Regulation and 114 of the Code.

4. The outcome of the investigation and the sanctioning procedure.

Based on the findings made by the Administrative Team of the P.A.S.I. Division of the Matera Police Headquarters, it has emerged that the surveillance cameras installed at the public establishment under the sign “Rocky Bar” located in Montescaglioso, Viale Aldo Moro 161, of which Ms. Giuliana Vinzi is the owner, are active and functioning and lack appropriate informational signs regarding their presence. It is also noted in the report that, although an employee was working at the establishment at the time of the inspection, the installation of the surveillance system did not occur in compliance with the framework of guarantees provided by art. 4 of the Workers’ Statute. It is therefore established, in this case, that the party has carried out processing of personal data through a surveillance system in

the absence of the required information. This conduct is in contrast with what is established by art. 13 of the Regulation, according to which the data controller is required to provide the data subject with all information regarding the essential characteristics of the processing. Furthermore, considering that the installation of the surveillance system had not been previously authorized by the Labor Inspectorate, the processing was also carried out in violation of art. 114 of the Code regarding the protection of personal data.

5. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to art. 58, par. 2, Regulation.

The processing of personal data carried out by the sole proprietorship is therefore unlawful, as stated above, in relation to arts. 5, par. 1, lett. a) (principle of transparency), 13 (information) of the Regulation and art. 114 of the Code regarding the protection of personal data. The violation established in the terms outlined in the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation). It should be noted that the party, in its defense submissions, stated that it has provided the required informational signs regarding the presence of the cameras and has obtained authorization for the installation of the cameras at the commercial establishment from the territorial Labor Inspectorate of Potenza-Matera; it has sent photographic documentation proving its claims.

6. Order of injunction.

The Guarantor, pursuant to art. 58, par. 2, lett. i) of the Regulation and art. 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation, by adopting an injunction order (art. 18, law of November 24, 1981, n. 689), in relation to the processing of personal data carried out by the company through the surveillance system, the unlawfulness of which has been established, as stated above, in relation to arts. 5, par. 1, lett. a), 13 of the Regulation and art. 114 of the Code. With reference to the elements listed in art. 83, par. 2, of the Regulation for the purpose of applying...

****Regarding the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (art. 83, par. 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken into account:****

1. With regard to the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;
2. The absence of specific previous violations against the company related to breaches of the regulations on personal data protection;
3. The circumstance that the party has submitted defensive writings declaring to have correctly placed suitable informational signs and obtained authorization for the installation of cameras from the Territorial Labor Inspectorate of Potenza-Matera, substantiating the claims made with appropriate documentation;

****It is also considered that the economic conditions of the offender, determined with reference to the financial statements for the year 2023, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation).****

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,000.00 (two thousand) for the violation of articles 5, 13 of the Regulation and 114 of the Code.

In this context, also considering the type of violation established, it is believed that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of this provision on the website of the Authority should proceed.

It is finally noted that the conditions referred to in art. 17 of regulation no. 1/2019 concerning internal

procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

****ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY declares, pursuant to articles 57, par. 1, lett. f) and 83 of the Regulation, the illegality of the processing carried out by Ms. Giuliana Vinzi through the use of the video surveillance system installed at the public establishment under the name “Rocky Bar” located in Montescaglioso (MT), Viale Aldo Moro 161, of which she is the owner, in the terms stated in the motivation, for the violation of articles 5, 13 of the Regulation and 114 of the Code;****

****ORDERS**** Ms. Giuliana Vinzi, owner of the commercial establishment under the name “Rocky Bar” located in Montescaglioso, Viale Aldo Moro 161, VAT number 0112700074, to pay the sum of €2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

****COMMANDS**** therefore Ms. Giuliana Vinzi, owner of the commercial establishment under the name “Rocky Bar” located in Montescaglioso, Viale Aldo Moro 161, to pay the sum of €2,000.00 (two thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to art. 27 of law no. 689/1981. It is represented that pursuant to art. 166, paragraph 8 of the Code, the offender retains the option to resolve the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in art. 10, paragraph 3, of legislative decree no. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

****DISPOSES**** pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the regulation of the Authority no. 1/2019, the publication of this provision on the website of the Authority and considers that the conditions referred to in art. 17 of regulation no. 1/2019 are met.

Pursuant to art. 78 of the Regulation, articles 152 of the Code, and 10 of legislative decree September 1, 2011, no. 150, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

****Rome, March 7, 2024****

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Stanzione

****THE SECRETARY GENERAL ****

Mattei